U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
OFFICE OF FEDERAL OPERATIONS

Kevin D. Turnage, Appellant, v. Xavier Becerra, SECRETARY, UNITED STATES DEPARTMENT OF HEALTH AND HUMAN SERVICES Agency.	)	Appeal No. 2024004239 Agency Case No. HHS-IHS-0296-2023 November 19, 2024

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☒ BRIEF IN SUPPORT OF APPEAL
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APPELLANT'S REPLY BRIEF IN SUPPORT OF APPEAL

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INTRODUCTION

Appellant, Kevin D. Turnage, respectfully submits this brief in support of his appeal of the Final Agency Decision (FAD) issued by the U.S. Department of Health and Human Services (HHS). The FAD failed to consider the totality of the evidence presented in the Record of Investigation (ROI) and improperly dismissed Appellant's claims of discrimination, retaliation, and harassment under Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act (ADEA), and other applicable laws.

FACTUAL BACKGROUND

Appellant is a Caucasian male born in 1973, practicing the Christian faith. During his tenure with the Indian Health Services (IHS), Appellant consistently demonstrated exemplary performance, including leading the Agency's Non-Violent Crisis Intervention Program. Despite this record, Appellant faced a pattern of retaliatory and discriminatory actions after engaging in protected Equal Employment Opportunity (EEO) activities. These adverse actions include:

1. Delays in Processing Family and Medical Leave Act (FMLA) Requests:

The ROI demonstrates that Appellant submitted complete FMLA paperwork on February 7, 2023, but the Agency did not process it until March 7, 2023, despite clear documentation of timely compliance (ROI, Ex. F-1, pp. 128-142).

2. Retaliatory Performance Evaluation:

Appellant received a "3.3 Achieved Expected Results" rating influenced by retaliatory motives. Key performance elements were omitted, and procedural irregularities were documented (ROI, Ex. F-1, pp. 143-149).

3. Administrative Leave Based on Unsubstantiated Allegations:

The ROI highlights conflicting witness testimony (Witness 1, Ex. F-7, pp. 274-280), undermining the Agency's justification for placing Appellant on administrative leave.

4. Reassignment Without Adequate Support:

Appellant was reassigned to a role that had been vacant for three years. The reassignment lacked operational necessity, and delays in providing resources such as restroom access and office keys further evidenced punitive intent (ROI, Ex. F-1, pp. 69-72).

5. Dismissal of Sexual Harassment Claim:

The FAD dismissed Appellant's sexual harassment claim stemming from unwelcome physical contact initiated by a second-line supervisor. This incident must be evaluated in the broader context of the hostile work environment.

ARGUMENT

I. The FAD Incorrectly Concluded That Appellant's Claims Were Without Merit

A. Hostile Work Environment Claims Were Ignored or Dismissed Improperly

The FAD failed to address repeated complaints of a hostile work environment created by Nurse Greve, which negatively impacted Appellant's ability to fulfill his supervisory duties. These complaints are documented in the ROI (ROI, Ex. F-3, pp. 216-217) and supported by corroborating testimony from Witness 1 (ROI, Ex. F-7, pp. 274-280).

B. Delays in Processing FMLA Requests Demonstrate Retaliation

The ROI establishes that Appellant submitted all required FMLA paperwork on time, yet the Agency delayed its processing by one month (ROI, Ex. F-1, pp. 128-142). This delay occurred

shortly after Appellant engaged in protected EEO activity. Under the Family and Medical Leave Act (29 U.S.C. § 2615) and Pagel v. TIN Inc., 695 F.3d 622 (7th Cir. 2012), such delays constitute retaliation if they create a chilling effect on the exercise of FMLA rights.

C. Retaliatory Performance Evaluation

The Agency issued a low PMAP score without scoring Element 1, a clear deviation from established evaluation procedures (ROI, Ex. F-1, pp. 143-149). Reeves v. Sanderson Plumbing Products, Inc., 530 U.S. 133 (2000), holds that procedural irregularities and omissions in performance evaluations are strong indicators of pretext and retaliation.

D. Administrative Leave Based on Pretextual Allegations

The administrative leave was justified by unsubstantiated claims of a workplace threat. Witness 1 initially supported the Agency's allegations but later retracted her testimony, citing pressure from the Agency (ROI, Ex. F-7, pp. 274-280). Burlington Northern & Santa Fe Ry. Co. v. White, 548 U.S. 53 (2006), establishes that such retaliatory actions violate Title VII.

E. Sexual Harassment Claim Was Improperly Dismissed

The FAD dismissed Appellant's sexual harassment claim without considering the cumulative effect of unwelcome physical contact within a hostile work environment. The Oncale v. Sundowner Offshore Services, Inc., 523 U.S. 75 (1998), decision requires analysis of the context and subjective impact of such incidents, which the FAD failed to do.

F. Violation of McDonnell Douglas Corp. v. Green Framework

1. Prima Facie Case

Under McDonnell Douglas, Appellant must establish a prima facie case by demonstrating:

1. Membership in a protected class.

2. Qualification for the position or performance of job duties satisfactorily.

3. Suffering an adverse employment action.

4. The adverse action occurred under circumstances giving rise to an inference of discrimination.

Application to Appellant's Case:

- **Protected Class**: Appellant is a Caucasian, Christian male over the age of 40 who engaged in protected activity by filing EEO complaints.

- **Qualification**: Appellant consistently performed his job duties effectively, evidenced by prior evaluations and responsibilities, including leading the Non-Violent Crisis Intervention Program.

- **Adverse Employment Actions**:

  - Delays in processing FMLA paperwork, resulting in unnecessary depletion of sick leave.

  - Receipt of a 3.3 performance rating, influenced by retaliation and excluding critical achievements.

  - Placement on administrative leave based on an exaggerated or fabricated workplace threat.

  - Reassignment to a position with inadequate resources and punitive conditions.

  - Failure to address a hostile work environment created by a subordinate and a second-line supervisor.

- **Inference of Discrimination**: The timing of the adverse actions closely followed Appellant's protected EEO activity and complaints about workplace hostility, suggesting a retaliatory motive.

Appellant meets all four elements of the prima facie case under McDonnell Douglas.

2. Agency's Articulated Legitimate, Non-Discriminatory Reasons

Under the McDonnell Douglas framework, the burden shifts to the Agency to articulate a legitimate, non-discriminatory reason for its actions. The Agency claims:

- The delay in processing FMLA paperwork was due to procedural issues.

- The performance rating of 3.3 reflected Appellant's job performance.

- Administrative leave was necessary to investigate a credible workplace threat.

- Reassignment was required to address operational needs.

- The alleged hostile work environment was not severe or pervasive.

Analysis of the Agency's Reasons:

- **FMLA Delays**: Testimony and documents show the paperwork was submitted correctly and timely, yet the Agency delayed approval without justification.
- **Performance Rating**: Evidence of omitted achievements and retaliatory timing suggests that the rating was not based on actual job performance.
- **Administrative Leave**: The alleged workplace threat was unsubstantiated, and the leave closely followed Appellant's protected activity.
- **Reassignment**: The position had been vacant for nearly three years, contradicting the claim of operational necessity. Additionally, Appellant was denied access to necessary resources.
- **Hostile Work Environment**: Witness testimony and evidence document pervasive and ongoing hostility that the Agency failed to address.

The Agency's explanations fail to adequately justify the adverse actions.

3. Pretext

Under McDonnell Douglas, the burden shifts back to Appellant to demonstrate that the Agency's articulated reasons are pretextual and that the real motive was discrimination or retaliation.

Evidence of Pretext:

- **Inconsistent Explanations**: The Agency's justifications for delays and adverse actions lack factual consistency with the evidence in the record.
- **Temporal Proximity**: The adverse actions occurred shortly after Appellant engaged in protected EEO activity, strongly suggesting retaliation.
- **Deviations from Policy**: The mishandling of FMLA paperwork and failure to investigate the hostile work environment demonstrate deviations from standard procedures.

- **Hostile Conditions**: The cumulative effect of the actions—such as the exclusionary reassignment conditions and exaggerated claims of a workplace threat—indicate punitive intent rather than legitimate operational needs.

Appellant's evidence undermines the credibility of the Agency's stated reasons and supports the conclusion that the real motive was discriminatory and retaliatory.

Policy Compliance Statement

As the Hospital Policy and Procedure Nurse Consultant, I can attest to the fact that policy compliance at the Phoenix Indian Medical Center (PIMC) in 2022 for local policies was alarmingly low, with a compliance rate of only 37.94%.

This dismal compliance rate reflects systemic deficiencies in ensuring adherence to established standards at the hospital. Moreover, the lack of executive leadership's concern regarding this poor compliance suggests an institutional disregard for enforcing critical policies. Given this context, it is reasonable to infer that compliance rates for policies outlined in the Indian Health Manual, as well as other Indian Health Services (IHS) and Health and Human Services (HHS) policies, were similarly deficient or worse.

Such a pervasive lack of compliance undermines the hospital's ability to ensure a safe, effective, and legally compliant workplace, further contributing to the hostile work environment experienced by the Appellant. It also reflects broader failures in leadership accountability, directly impacting employees and the quality of care provided at PIMC. This systemic non-compliance provides additional context for understanding the Agency's retaliatory and discriminatory actions, highlighting an organizational culture that neglects both employee well-being and policy enforcement.

Integration into Appeal Argument

The low compliance rate at Phoenix Indian Medical Center (PIMC) directly supports the Appellant's claims of systemic failures within the Agency. Specifically:

- **Institutional Neglect:** The 37.94% compliance rate in 2022 illustrates a broader organizational culture of disregarding policy enforcement, as reflected in the mishandling of FMLA requests and retaliation claims.
- **Failure to Address Non-Compliance:** The lack of concern by executive leadership underscores the Agency's inability to create a legally compliant and supportive work environment.
- **Impact on Appellant's Case:** This context strengthens the Appellant's argument that adverse actions taken against him were not isolated incidents but part of a systemic pattern of neglect and retaliation.

Conclusion

The Agency's actions violate the principles established in McDonnell Douglas Corp. v. Green by:

1. Taking adverse actions against Appellant despite his qualifications and protected status.
2. Failing to provide legitimate, non-discriminatory reasons supported by evidence.
3. Demonstrating pretext through inconsistencies, procedural deviations, and retaliatory timing.

The Commission should find that the Agency's actions were discriminatory and retaliatory under the McDonnell Douglas framework.

LEGAL FRAMEWORK

This appeal is governed by the following laws and precedents:

1. Title VII of the Civil Rights Act of 1964 (42 U.S.C. § 2000e et seq.): Prohibits discrimination based on race, color, religion, sex, and national origin.
2. Age Discrimination in Employment Act (ADEA, 29 U.S.C. § 621 et seq.): Protects employees over 40 from age-based discrimination.
3. Family and Medical Leave Act (FMLA, 29 U.S.C. § 2601 et seq.): Protects employees from retaliation for exercising leave rights.
4. Faragher v. City of Boca Raton, 524 U.S. 775 (1998): Establishes the standard for hostile work environment claims.
5. Burlington Northern & Santa Fe Ry. Co. v. White, 548 U.S. 53 (2006): Defines retaliatory actions under Title VII.
6. Reeves v. Sanderson Plumbing Products, Inc., 530 U.S. 133 (2000): Addresses the role of procedural irregularities in proving pretext.

Request for Relief

Appellant respectfully requests that the Commission grant the following relief to remedy the harm caused by the Agency's unlawful actions, including harassment, discrimination, and retaliation:

1. Reinstatement of Sick Time Used for FMLA Leave

Appellant requests the full reinstatement of sick time utilized for the approved Family and Medical Leave Act (FMLA) leave. This relief addresses the undue delays and procedural failures in processing the FMLA request, which resulted in unnecessary use of

Appellant's accrued leave time. Additionally, Appellant seeks reimbursement of any costs associated with the completion and submission of FMLA paperwork.

2. Lost Benefits

Appellant requests full compensation for benefits interrupted or denied because of the Agency's actions, including:

- **Sick Leave Balance Restoration**: Restoration of the sick leave improperly depleted due to delays or mishandling of the FMLA request.

3. Non-Economic Damages

Appellant seeks compensation for emotional distress and suffering caused by the Agency's actions, including but not limited to:

- **Emotional Distress and Mental Anguish**: Damages for the shame, embarrassment, anxiety, depression, and humiliation experienced due to the hostile work environment and retaliatory actions.
- **Reputation Damage**: Compensation for harm caused to Appellant's professional reputation as a result of unfounded allegations and punitive measures.

Evidence Supporting Emotional Distress:

- Appellant is prepared to present testimony documenting the emotional harm suffered.
- If necessary, Appellant will engage expert witnesses to corroborate the mental health impact.
- Medical records and evidence of diagnoses, including prescribed medications, will further substantiate Appellant's claim.

4. Punitive Damages

Appellant requests punitive damages to deter the Agency from engaging in similar discriminatory and retaliatory conduct in the future. The Agency's egregious and willful disregard for Appellant's rights warrants such relief to punish the wrongdoer and promote accountability.

5. Injunctive Relief

Appellant seeks injunctive relief to address ongoing harm and ensure future compliance with anti-harassment and anti-retaliation policies, including:

- **Removal or Transfer of Harasser**: The Commission should mandate the removal or transfer of individuals who engaged in harassment or contributed to the hostile work environment, ensuring that such behavior is not perpetuated.

- **Policy Reforms**: The Agency must:

  - Review and revise its harassment and discrimination policies.

  - Implement mandatory training programs for all employees and supervisors on preventing workplace harassment and retaliation.

  - Establish clear procedures for investigating harassment and retaliation complaints to ensure impartiality and accountability.

Conclusion

Appellant respectfully requests that the Commission grant the above relief in full to remedy the harm suffered and to ensure a workplace free from discrimination, harassment, and retaliation. Appellant further seeks any additional relief deemed just and proper under the circumstances.

CERTIFICATE OF SERVICE

I hereby certify that on November 19, 2024, a copy of the foregoing Appellant's Reply Brief in Support of Appeal was served upon the following:

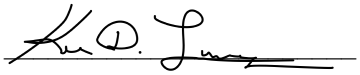
1. EEOC Office of Federal Operations

   Served via FedSEP.

2. Kara Slack, Agency Representative

   Email: **Kara.Slack@hhs.gov**

   Served via email and FedSEP.



Kevin D. Turnage